

# CURRENT AFFAIRS



## NEPAL & IMPEACHMENT



MINI CAPSULE

04-05-2017

8/18<sup>th</sup> Week







# SPECIAL RELATIONSHIP INDIA - NEPAL



## AS PER “1950 INDIA-NEPAL TREATY OF PEACE AND FRIENDSHIP”

- 1 Everlasting peace and friendship between India & Nepal
- 3 Visa free travel
- 5 Nepal can freely import arms & ammunition required for its safety & security through the territory of India
- 7 Same privileges to nationals of other country in the matter of residence, ownership of property and participation in trade and commerce

- 2 Both the countries should inform each other any serious friction or misunderstanding with any neighbouring state
- 4 Open borders
- 6 “National treatment” to the nationals of other country in industrial and economic development

*It resulted in “**Roti-Beti Relation**” of Terai region people especially Madhesis with the people of Bihar and Uttar Pradesh in India and it is also leading to misunderstanding sometimes in Nepal.*



# NEPAL

## OTHER ASPECTS



- 1 “Treaty of Peace and Friendship” signed on 31<sup>st</sup> July 1950 gives national treatment to the nationals of other country
- 2 The country was “Hindu Monarchy” till it was abolished in 2008
- 3 Decade long civil war by Maoist Rebels in 1990s and early 2000s resulted in death of more than 10,000 people and peace deal was signed in 2006
- 4 After 7 years, Constitution was adopted on 20<sup>th</sup> September, 2015
- 5 Madhesis and other ethnic groups are not happy with the Constitution and resorted to agitation and road blockade with India for more than 5 months.
- 6 Essential supplies were effected in Nepal and it gave rise to anti India sentiments in Nepal





## NEWS REPORT

**SUSHILA KARKI**

Supreme Court Chief Justice

*Who was suspended recently*

- 1 The two biggest parties in the coalition, the Communist Party of Nepal led by Prime Minister Pushpa Kamal Dahal (Maoist-Centre) and the Nepali Congress of Sher Bahadur Deuba, have decided to impeach the Supreme Court Chief Justice.
- 2 She was accused of interfering with executive powers.
- 3 She was due to retire in a month's time.
- 4 She was suspended immediately.
- 5 The constitutional provision has been misused.
- 6 She is seen by Nepal's civil society as being fairly independent-minded.



## WHAT ARE HER ACTIONS, WHICH LED TO SUSPENSION?

**1**

The Maoists were upset by a recent court decision to reject clemency for a Maoist leader convicted for a murder committed during the civil war.

**2**

Mr. Deuba reportedly feared being hauled up on contempt charges, which could have made his elevation to the post of Prime Minister difficult.

*The government initiated impeachment proceedings over the debatable issue of judicial overreach and this threatens the separation of powers in the young republic.*





## WHAT ARE THE PRESENT ISSUES IN NEPAL?

- 1 Frequent change of Prime Ministers, just like musical chairs.
- 2 Madhesis issue is yet to be concluded.
- 3 Not happy with the impeachment proceedings, one of the alliance partners, the Rastriya Prajatantra Party, has decided to withdraw support to the coalition.
- 4 Deputy Prime Minister and Home Minister Bimalendra Nidhi of the Nepali Congress, also resigned in protest against the motion.
- 5 Smooth conduct of local body elections appears to be dim.
- 6 Impeachment on flimsy grounds is not expected from a democratic country, where clear separation of powers is expected.
- 7 If local elections are not held in May as scheduled, it may be difficult for constitutionally mandated parliamentary elections to be held by the January 2018 deadline.

***It appears Nepal is not mature enough to lead democracy as its anchor, after overturning the monarchy almost a decade ago.***



CHINA

Madeshi Region

NEPAL

UTTAR PRADESH

BIHAR



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